

3. An order determining that the landlord, superintendent or agent of the landlord has substantially interfered with the reasonable enjoyment of the rental unit or residential complex for all usual purposes by the tenant or a member of his or her household.
4. An order determining that the landlord, superintendent or agent of the landlord has harassed, obstructed, coerced, threatened or interfered with the tenant during the tenant's occupancy of the rental unit.
5. An order determining that the landlord, superintendent or agent of the landlord has altered the locking system on a door giving entry to the rental unit or the residential complex or caused the locking system to be altered during the tenant's occupancy of the rental unit without giving the tenant replacement keys.
6. An order determining that the landlord, superintendent or agent of the landlord has illegally entered the rental unit. 2006, c. 17, s. 29 (1).

Time limitation

(2) No application may be made under subsection (1) more than one year after the day the alleged conduct giving rise to the application occurred. 2006, c. 17, s. 29 (2).

Order, repair, comply with standards

30 (1) If the Board determines in an application under paragraph 1 of subsection 29 (1) that a landlord has breached an obligation under subsection 20 (1) or section 161, the Board may do one or more of the following:

1. Terminate the tenancy.
2. Order an abatement of rent.
3. Authorize a repair or replacement that has been or is to be made, or work that has been or is to be done, and order its cost to be paid by the landlord to the tenant.
4. Order the landlord to do specified repairs or replacements or other work within a specified time.
5. Order the landlord to pay a specified sum to the tenant for,
 - i. the reasonable costs that the tenant has incurred or will incur in repairing or, where repairing is not reasonable, replacing property of the tenant that

was damaged, destroyed or disposed of as a result of the landlord's breach, and

ii. other reasonable out-of-pocket expenses that the tenant has incurred or will incur as a result of the landlord's breach.

6. Prohibit the landlord from charging a new tenant under a new tenancy agreement an amount of rent in excess of the last lawful rent charged to the former tenant of the rental unit, until the landlord has,

i. completed the items in work orders for which the compliance period has expired and which were found by the Board to be related to a serious breach of a health, safety, housing or maintenance standard, and

ii. completed the specified repairs or replacements or other work ordered under paragraph 4 found by the Board to be related to a serious breach of the landlord's obligations under subsection 20 (1) or section 161.

7. Prohibit the landlord from giving a notice of a rent increase for the rental unit until the landlord has,

i. completed the items in work orders for which the compliance period has expired and which were found by the Board to be related to a serious breach of a health, safety, housing or maintenance standard, and

ii. completed the specified repairs or replacements or other work ordered under paragraph 4 found by the Board to be related to a serious breach of the landlord's obligations under subsection 20 (1) or section 161.

8. Prohibit the landlord from taking any rent increase for which notice has been given if the increase has not been taken before the date an order under this section is issued until the landlord has,

i. completed the items in work orders for which the compliance period has expired and which were found by the Board to be related to a serious breach of a health, safety, housing or maintenance standard, and

ii. completed the specified repairs or replacements or other work ordered under paragraph 4 found by the Board to be related to a serious breach of the landlord's obligations under subsection 20 (1) or section 161.

9. Make any other order that it considers appropriate. 2006, c. 17, s. 30 (1).

Advance notice of breaches

(2) In determining the remedy under this section, the Board shall consider whether the tenant or former tenant advised the landlord of the alleged breaches before applying to the Board. 2006, c. 17, s. 30 (2).

Other orders re s. 29

31 (1) If the Board determines that a landlord, a superintendent or an agent of a landlord has done one or more of the activities set out in paragraphs 2 to 6 of subsection 29 (1), the Board may,

- (a) order that the landlord, superintendent or agent may not engage in any further activities listed in those paragraphs against any of the tenants in the residential complex;
- (b) order that the landlord, superintendent or agent pay a specified sum to the tenant for,
 - (i) the reasonable costs that the tenant has incurred or will incur in repairing or, where repairing is not reasonable, replacing property of the tenant that was damaged, destroyed or disposed of as a result of the landlord, superintendent or agent having engaged in one or more of the activities listed in those paragraphs, and
 - (ii) other reasonable out-of-pocket expenses that the tenant has incurred or will incur as a result of the landlord, superintendent or agent having engaged in one or more of the activities listed in those paragraphs;
- (c) order an abatement of rent;
- (d) order that the landlord pay to the Board an administrative fine not exceeding the greater of \$10,000 and the monetary jurisdiction of the Small Claims Court;
- (e) order that the tenancy be terminated;
- (f) make any other order that it considers appropriate. 2006, c. 17, s. 31 (1).

Same

(2) If in an application under any of paragraphs 2 to 6 of subsection 29 (1) it is determined that the tenant was induced by the conduct of the landlord, the superintendent or an agent of the landlord to vacate the rental unit, the Board may,

in addition to the remedies set out in subsection (1), order that the landlord pay a specified sum to the tenant for,

- (a) all or any portion of any increased rent which the tenant has incurred or will incur for a one-year period after the tenant has left the rental unit; and
- (b) reasonable out-of-pocket moving, storage and other like expenses which the tenant has incurred or will incur. 2006, c. 17, s. 31 (2).

Order, s. 29 (1), par. 5

(3) If the Board determines, in an application under paragraph 5 of subsection 29 (1), that the landlord, superintendent or agent of the landlord has altered the locking system on a door giving entry to the rental unit or the residential complex, or caused the locking system to be altered, during the tenant's occupancy of the rental unit without giving the tenant replacement keys, and if the Board is satisfied that the rental unit is vacant, the Board may, in addition to the remedies set out in subsections (1) and (2), order that the landlord allow the tenant to recover possession of the rental unit and that the landlord refrain from renting the unit to anyone else. 2006, c. 17, s. 31 (3).

Effect of order allowing tenant possession

(4) An order under subsection (3) shall have the same effect, and shall be enforced in the same manner, as a writ of possession. 2006, c. 17, s. 31 (4).

Expiry of order allowing tenant possession

- (5) An order under subsection (3) expires,
- (a) at the end of the 15th day after the day it is issued if it is not filed within those 15 days with the sheriff who has territorial jurisdiction where the rental unit is located; or
 - (b) at the end of the 45th day after the day it is issued if it is filed in the manner described in clause (a). 2006, c. 17, s. 31 (5).

Eviction with termination order

32 If the Board makes an order terminating a tenancy under paragraph 1 of subsection 30 (1) or clause 31 (1) (e), the Board may order that the tenant be evicted,

effective not earlier than the termination date specified in the order. 2006, c. 17, s. 32.

PART IV

RESPONSIBILITIES OF TENANTS

Tenant's responsibility for cleanliness

33 The tenant is responsible for ordinary cleanliness of the rental unit, except to the extent that the tenancy agreement requires the landlord to clean it. 2006, c. 17, s. 33.

Tenant's responsibility for repair of damage

34 The tenant is responsible for the repair of undue damage to the rental unit or residential complex caused by the wilful or negligent conduct of the tenant, another occupant of the rental unit or a person permitted in the residential complex by the tenant. 2006, c. 17, s. 34.

Changing locks

35 (1) A tenant shall not alter the locking system on a door giving entry to a rental unit or residential complex or cause the locking system to be altered during the tenant's occupancy of the rental unit without the consent of the landlord. 2006, c. 17, s. 35 (1).

Landlord application

(2) If a tenant alters a locking system, contrary to subsection (1), the landlord may apply to the Board for an order determining that the tenant has altered the locking system on a door giving entry to the rental unit or the residential complex or caused the locking system to be altered during the tenant's occupancy of the rental unit without the consent of the landlord. 2006, c. 17, s. 35 (2).

Order

(3) If the Board in an application under subsection (2) determines that a tenant has altered the locking system or caused it to be altered, the Board may order that the tenant provide the landlord with keys or pay the landlord the reasonable out-of-pocket expenses necessary to change the locking system. 2006, c. 17, s. 35 (3).

Tenant not to harass, etc.

36 A tenant shall not harass, obstruct, coerce, threaten or interfere with a landlord. 2006, c. 17, s. 36.

Note: On a day to be named by proclamation of the Lieutenant Governor, Part IV of the Act is amended by adding the following section: (See: 2023, c. 10, Sched. 7, s. 1)

Air conditioning

36.1 (1) A tenant may install and use a window or portable air conditioner in a rental unit for which the landlord does not supply air conditioning, unless prohibited from doing so by the landlord under subsection (2), and subject to the conditions set out in subsection (3). 2023, c. 10, Sched. 7, s. 1.

Exception

(2) The landlord may, in the prescribed circumstances, prohibit a tenant from installing an air conditioner. 2023, c. 10, Sched. 7, s. 1.

Conditions

(3) The installation and use of a window or portable air conditioner under subsection (1) is subject to the following conditions:

1. Before installing the air conditioner, the tenant must notify the landlord in writing.
2. If subsection (5) may apply in the circumstances, the notice must include any information available to the tenant about the energy efficiency of the air conditioner, and information about the tenant's anticipated usage of the air conditioner.
3. The tenant shall ensure that the air conditioner, including its installation and operation, does not damage the rental unit or residential complex.
4. The air conditioner must be installed safely and securely.
5. The installation of the air conditioner is not prohibited by any applicable municipal property standards by-law or other applicable law, and the air conditioner is installed and maintained in accordance with any applicable laws.
6. Any other prescribed conditions. 2023, c. 10, Sched. 7, s. 1.

Reasonable inspection

(4) For greater certainty, a reasonable inspection by a landlord for the purpose of determining compliance with paragraph 3, 4 or 5 of subsection (3) is a circumstance for which a landlord may enter a rental unit under paragraph 4 of subsection 27 (1) of the Act. 2023, c. 10, Sched. 7, s. 1.

Rent increase

(5) If, on or after the day section 1 of Schedule 7 to the *Helping Homebuyers, Protecting Tenants Act, 2023* comes into force, a tenant installs and uses a window or portable air conditioner in a rental unit to which the landlord is obligated under the tenancy agreement to supply electricity, the landlord may increase the rent charged to the tenant. 2023, c. 10, Sched. 7, s. 1.

Exception

(6) Subsection (5) does not apply if the tenancy agreement expressly provides that the tenant may install a window or portable air conditioner without any increase of rent. 2023, c. 10, Sched. 7, s. 1.

Maximum

(7) An increase under subsection (5) shall not exceed the actual cost to the landlord of the electricity supplied for the operation of the air conditioner or, where the actual cost cannot be established, a reasonable estimate based on the information provided by the tenant under paragraph 2 of subsection (3). 2023, c. 10, Sched. 7, s. 1.

Rent decrease, removal

(8) If a tenant who is subject to a rent increase under subsection (5) removes the air conditioner, the landlord shall decrease the rent charged to the tenant by the amount of the increase. 2023, c. 10, Sched. 7, s. 1.

Rent decrease, seasonal use

(9) If a tenant who is subject to a rent increase under subsection (5) seasonally ceases to use the air conditioner, the landlord shall decrease the rent charged to the tenant by the amount of the increase. 2023, c. 10, Sched. 7, s. 1.

Same, resumption of use

(10) If the tenant seasonally resumes using the air conditioner, the landlord may

increase the rent charged to the tenant, and subsections (7) to (9) apply with necessary modifications with respect to the rent increase. 2023, c. 10, Sched. 7, s. 1.

Application

(11) Sections 110, 116, 119 and 120 and any order under paragraph 6 of subsection 30 (1) do not apply with respect to a rent increase under this section. 2023, c. 10, Sched. 7, s. 1.

Application to existing air conditioners

(12) Subsection (3), other than paragraphs 1 and 2, applies with necessary modifications with respect to a window or portable air conditioner installed by a tenant in a rental unit before the day section 1 of Schedule 7 to the *Helping Homebuyers, Protecting Tenants Act, 2023* comes into force, subject to subsection (13). 2023, c. 10, Sched. 7, s. 1.

Non-application

(13) This section does not apply with respect to rental units in a mobile home park or land lease community. 2023, c. 10, Sched. 7, s. 1.

▼ Section Amendments with date in force (d/m/y)

PART V

SECURITY OF TENURE AND TERMINATION OF TENANCIES

SECURITY OF TENURE

Termination only in accordance with Act

37 (1) A tenancy may be terminated only in accordance with this Act. 2006, c. 17, s. 37 (1).

Termination by notice

(2) If a notice of termination is given in accordance with this Act and the tenant vacates the rental unit in accordance with the notice, the tenancy is terminated on the termination date set out in the notice. 2006, c. 17, s. 37 (2).

Termination by agreement

(3) A notice of termination need not be given if a landlord and a tenant have agreed to terminate a tenancy. 2006, c. 17, s. 37 (3).

When notice void

(4) A tenant's notice to terminate a tenancy is void if it is given,

- (a) at the time the tenancy agreement is entered into; or
- (b) as a condition of entering into the tenancy agreement. 2006, c. 17, s. 37 (4).

When agreement void

(5) An agreement between a landlord and tenant to terminate a tenancy is void if it is entered into,

- (a) at the time the tenancy agreement is entered into; or
- (b) as a condition of entering into the tenancy agreement. 2006, c. 17, s. 37 (5).

Application of subss. (4) and (5)

(6) Subsections (4) and (5) do not apply to rental units occupied by students of one or more post-secondary educational institutions,

- (a) in a residential complex owned, operated or administered by or on behalf of the post-secondary educational institutions; or
- (b) in a residential complex where a non-profit housing co-operative provides housing units primarily for post-secondary students. 2013, c. 3, s. 25.

Same

(7) Subsections (4) and (5) do not apply to rental units in a residential complex with respect to which the landlord has entered into an agreement with one or more post-secondary educational institutions providing,

- (a) that the landlord, as of the date the agreement is entered into and for the duration of the agreement, rents the rental units which are the subject of the agreement only to students of the institution or institutions;
- (b) that the landlord will comply with the maintenance standards set out in the agreement with respect to the rental units which are the subject of the agreement; and

(c) that the landlord will not charge a new tenant of a rental unit which is a subject of the agreement a rent which is greater than the lawful rent being charged to the former tenant plus the guideline. 2006, c. 17, s. 37 (7).

Same

(8) The maintenance standards set out in the agreement and referred to in clause (7) (b) shall not provide for a lower maintenance standard than that required by law. 2006, c. 17, s. 37 (8).

Same

(9) If the landlord breaches any of clauses (7) (a), (b) and (c), the agreement referred to in subsection (7) is terminated and the exemption provided by subsection (7) no longer applies. 2006, c. 17, s. 37 (9).

Same

(10) The landlord shall be deemed to have not breached the condition in clause (7) (a) if,

(a) upon a tenant ceasing to be a student of a post-secondary educational institution that is a party to the agreement with the landlord, the landlord takes action to terminate the tenancy in accordance with an agreement with the tenant to terminate the tenancy or a notice of termination given by the tenant; or

(b) a tenant sublets the rental unit to a person who is not a student of a post-secondary educational institution that is a party to the agreement with the landlord. 2006, c. 17, s. 37 (10).

Same

(11) Either party to an agreement referred to in subsection (7) may terminate the agreement on at least 90 days written notice to the other party and, upon the termination of the agreement, the exemption provided by subsection (7) no longer applies. 2006, c. 17, s. 37 (11).

▼ Section Amendments with date in force (d/m/y)
